

26STCV01060 26STCV01060

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 26STCV01060 Hearing Date: July 1, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July 1, 2025 TRIAL

DATE: May 15, 2028

CASE: Zhao Zehao v. BMW of North America, LLC

CASE NO.: 26STCV01060

PLAINTIFF'S

DEMURRER TO ANSWER

MOVING PARTY: Plaintiff

Zhao Zehao

RESPONDING PARTY: Defendant BMW of

North America, LLC

I. INTRODUCTION

On January 12, 2026, Plaintiff, Zhao Zehao, commenced this Song-Beverly action against Defendant, BMW of North America, LLC, arising from the purchase of a new 2024 BMW iX (the "Vehicle").

On February 13, 2026, Defendant filed an Answer to the Complaint.

On February 25, 2026, Plaintiff filed this demurrer to Defendant's Answer.

On June 16, 2026, Defendant filed an opposition.

On June 24, 2026, Plaintiff filed a reply.

II. LEGAL STANDARD

A demurrer to an answer may be appropriate if "[t]he answer does not state facts sufficient to constitute a defense [or] [t]he answer is uncertain." (Code Civ. Proc., § 430.20, subds. (a), (b)).^[1] An affirmative defense is considered "new matter" beyond a general denial. (§ 431.30, subd. (b)(2).) The defendant bears the burden of proof to establish any new matters. (*Harris v City of Santa Monica* (2013) 56 Cal.4th 203, 239.) The answer must allege the facts on which the defense is founded. (See *California Trust Co. v. Gustason* (1940) 15 Cal.2d 268, 273.)

Ultimate facts are generally sufficient, rather than evidentiary matters or legal conclusions. (See *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) Even where a defense is defectively pled, it may be allowed if the Answer gives sufficient notice to enable the plaintiff to prepare to meet the defense, in part because unpled defenses are waived. (See *Harris v. City of Santa Monica*, supra, 56 Cal.4th at p. 240.)

III. DISCUSSION

A.

Timeliness

Defendant argues the demurrer is untimely. Defendant is incorrect. A demurrer must be filed and served within ten days after service of the answer to a pleading. (§ 430.40.) Here, Defendant served and filed its Answer to the Complaint on February 13, 2026. (*Souto Decl., Ex. A.*) Electronic service extends the time to file the demurrer by two days. (§§ 430.40; 1010.6(a)(3)(B).) Here, Defendant served and filed its Answer on February 13, 2026 by electronic service.

Plaintiff's demurrer followed twelve days later. The demurrer is timely filed. The court proceeds to consider the merits of the demurrer.

B.

Merits of the Demurrer

The demurrer lacks merit. Plaintiff relies on conclusory, boilerplate language to show that Defendant failed to plead enough facts to articulate an affirmative defense. Plaintiff's efforts are frivolous. All of Defendant's affirmative defenses are pled sufficiently to put Plaintiff on notice and tailor its discovery to the defenses. In the court's view, this is a clear attempt to drive up legal fees and delay the speedy resolution of this case. Since all unpled defenses are waived, Defendant need not plead specific facts to support each defense; it need only plead enough facts to put Plaintiff on notice, which it has done here.

IV. CONCLUSION

The demurrer is OVERRULED.

Defendant to give notice, unless waived.

Dated: July 1, 2026

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↺ Brock T. Hammond

↺ Judge of the Superior Court↺

[1]

All further statutory references shall be to the Code of Civil Procedure unless otherwise indicated.